

24NWCV02886 24NWCV02886

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EDUARDO VALDIVA, ET AL. v. AB RENOVATIONS CORP.

CASE NO.: 24NWCV02886

HEARING: 08/20/2026 @ 9:30 AM

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TENTATIVE ORDER

Defendant AB Renovations Corp.'s motion to dismiss the Amendments to Complaint is DENIED.

Moving party to give notice.

Defendant AB Renovations Corp. (Defendant) moves to dismiss two Amendments to Complaint for failure to serve.

Background

Plaintiffs Eduardo Valdiva and Virigina Valdiva (Plaintiffs) filed this breach of contract action against Defendant on August 30, 2024. On July 10, 2025, the Court overruled in part and sustained with leave to amend in part Defendant's demurrer to the complaint. On August 11, 2025, Plaintiffs filed a first amended complaint. On September 2, 2025, Plaintiffs filed two Amendments to Complaint naming Jermaine Lashon Jackson as Doe 1 and Jacqueline Guerrero Vargas as Doe 2 (Amendments to Complaint). On October 10, 2025, the Court granted Plaintiffs' motion for leave to file a SAC. On the same date,

Plaintiffs filed the operative SAC.

The SAC alleges the following: Plaintiffs were the owners of the property located at 12732 Foster Road, Norwalk, California 90650 (Subject Property). (SAC, ¶ 16.) On or about April 15, 2024, Plaintiffs and Defendant entered into a written agreement stating Defendant would provide labor and material to remodel and install a new roof for the Subject Property. (SAC, ¶¶ 19-20.) Plaintiffs allege, among other acts, that Defendant misrepresented itself as licensed contractors, never intended to perform the roof work, forged Plaintiffs' signatures on a credit application, and caused Plaintiffs to suffer losses. (SAC, ¶¶ 27-30.)

The SAC asserts five causes of action:

(1) breach of contract, (2) fraud, (3) unlawful and unfair business act or practices, (4) civil conspiracy, and (5) declaratory relief.

Legal Standard

California Rules of Court, rule 3.110(b) provides “[w]hen the complaint is amended to add a defendant, the added defendant must be served and proof of service must be filed within 30 days after the filing of the amended complaint.”

Discussion

Defendant moves to dismiss the Amendments to Complaint adding Jermaine Franklin and Jacquelyn Guerrero Vargas as defendants in this action pursuant to California Rules of Court, rule 3.110(b), (c), (e), and (f). This motion is unopposed.

Firstly, the Court notes that California Rules of Court, rule 3.110(f) prescribes the remedy for a failure to serve pursuant to a violation of the rule: “If a party fails to serve and file pleadings as required under this rule, and has not obtained an order extending time to serve its pleadings, the court may issue an order to show cause why sanctions shall not be imposed.” Therefore, a motion to dismiss is not the proper method for relief for a violation of this rule.

Second, to the extent that Defendant seeks to quash service of summons as to Jermaine Franklin and Jacquelyn Guerrero Vargas, Defendant

does not cite, and the Court is not aware of, authority permitting a party to quash service of summons on behalf of others. (See Code Civ. Proc., § 418.10 ["A defendant, on or before the last day of his or her time to plead or within any further time that the court may for good cause allow, may serve and file a notice of motion...[t]o quash service of summons on the ground of lack of jurisdiction of the court over him or her."].)

Moreover, the Court notes that Jacquelyn Guerrero Vargas filed an answer on March 19, 2026, and Jermaine Franklin filed an answer on June 3, 2026. Therefore, both defendants made a general appearance. "A general appearance by a party is equivalent to personal service of summons on such party." (Code Civ. Proc., § 410.50, subd. (a).) "Filing an answer on the merits constitutes a general appearance." (Fireman's Fund Ins. Co. v. Sparks Construction, Inc. (2004) 114 Cal.App.4th 1135, 1145.)

Accordingly, Defendant's motion to dismiss the Amendments to Complaint is DENIED.